



Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON FEBRUARY 3, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	S. B. Member
Hon. Luis Lee E. Espeña, Jr.	S. B. Member
Hon. Alice D. Emano	S. B. Member
Hon. Juan D. Ebid	S. B. Member
Hon. Albert D. Destura	S. B. Member
Hon. Joseph H. Yap, Jr.	S. B. Member
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S.B. Member

ABSENT:

Hon. Rodolfo E. Diolata	S.B. Member / on leave
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RESOLUTION NO. 028-2025

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO REQUEST FROM THE COMMISSION ON ELECTIONS (COMELEC) FOR EXEMPTION ON THE PROHIBITION AGAINST RELEASE, DISBURSEMENT, OR EXPENDITURE OF PUBLIC FUNDS FOR SOCIAL WELFARE AND SERVICES PROJECTS AS PROVIDED UNDER SECTION 261 (v) OF THE OMNIBUS ELECTION CODE (OEC) IN CONNECTION WITH THE MAY 12, 2025 NATIONAL AND LOCAL ELECTIONS, AND BARMM PARLIAMETARY ELECTIONS

WHEREAS, Section 261 (v) of the Omnibus Election Code (OEC) prohibits public official or employee including barangay officials and those of government-owned or controlled corporations and their subsidiaries, during forty-five days preceding a regular election, from release, disbursement or expenditure of any public funds, unless said release, disbursement or expenditure falls within the exemptions;

WHEREAS, COMELEC Resolution No. 11060 provides for the Rules and Regulations on the Prohibition against the Release, Disbursement, or Expenditure of Public Funds for Social Services and Housing-related Projects, and Issuance of Treasury Warrants and Similar Devices Under Sections 261 (V) and (W) of the Omnibus Election Code in connection with the May 12, 2025 National and Local Elections, and BARMM Parliamentary Elections;

WHEREAS, under Rule II, Section 2 of the said Rules, Release, Disbursement, or Expenditure of Public Funds for social welfare and service projects is prohibited starting March 28, 2025 until May 11, 2025, except as authorized by the COMELEC;

WHEREAS, the LGU of Prieto Diaz deems necessary to ensure the continuous delivery of basic social services especially to the poor, vulnerable and marginalized sector of the municipality thereby necessitating the filing of request to the COMELEC for the issuance of Certificate of Exemption of the social welfare and services projects of the municipality from the aforesaid prohibition;

WHEREAS, on motion of Hon. Juan Ebid, duly seconded by Hon. Antonio Emano, Jr.;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to request from the Commission on Elections (COMELEC) for exemption on the prohibition against release, disbursement, or expenditure of public funds for social welfare and services projects as provided under Section 261 (v) of the Omnibus Election Code (OEC) in connection with the May 12, 2025 National and Local Elections, and BARMM Parliamentary Elections;

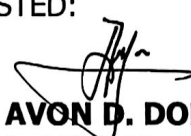
FINALLY RESOLVED, to transmit this resolution to Municipal Mayor, Hon. Romeo D. Domasian, Municipal Mayor, for his information, reference and attachment to the request for exemption submitted to the Law Department of the COMELEC, Manila;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer